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Urgent review ‘essential’ to overhaul ‘dysfunctional’ County Court, Justice Committee warns

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Ministers’ rejection of a key recommendation to undertake an ‘urgent and comprehensive’ review of the County Court launched by Spring 2026, risks perpetuating a ‘dysfunctional’ system that has ‘failed’ adequately to deliver civil justice across England and Wales, the Justice Committee has warned.

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In the Government’s response published today (October 17) to the Committee’s Work of the County Court report, the Ministry of Justice acknowledged the County Court “faces substantial challenges, and the performance needs to improve” but added work that is happening “is seeing progress towards a more efficient, timely and digitised service and which we expect to continue”.

The cross-party Committee’s July report called for a ‘root-and-branch’ review to address systemic delays and entrenched inefficiencies across its operations. The report found the decade-long digital Reform programme has fallen well short of its ambition, leaving a myriad of incompatible systems and outdated paper-based processes.

The Committee pointed to the fact that reviews have been undertaken into both sentencing and the criminal courts and yet there is a ‘fundamental absence’ of any equivalent process for civil justice, demonstrating that it is the ‘Cinderella service’ of the justice system.

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Image: House of Commons

In its response, the Government said:

“The work of the Justice Committee through its Work of the County Court Inquiry has been meticulous and thorough. The Inquiry itself has provided a solid foundation and highlighted the areas of the County Court’s operation that need urgent attention.

“Rather than focusing on a root and branch review of the County Court, the Government is keen to focus on taking tangible and practical steps to improve the operation of the County Court – which will benefit everyday users - without further delay. We are already seeing these measures bear fruit with improvements to the timeliness of claims that got to trial, improving call waiting times, growth in small claims mediation and further improvements to case management and file transfer systems.”

The Committee welcomed the MoJ’s acceptance or partial acceptance of its recommendations relating to “unacceptable” delays, recruitment and retention issues across frontline staff and the Judiciary, the complex "patchwork" of paper-based and digital systems in the County Court and the “significant disrepair” of the Court estate.

In its response the Government said: “In recent years, the County Court has had an increasing workload, challenges around staffing, and with judicial capacity particularly in areas such as London and the South East.

Performance has been of concern in several areas. However, over the last year civil performance has been a particular focus for investment (of both staff resource and sitting days) and the latest civil justice statistics, published on 4 September, show promising progress.”

On digitisation, it added: “In tandem with our work to expand the reach of our digital services we are implementing improvements in electronic document management through the Civil Auto File Share (CAFS) project which will be delivered by the end of the year.

CAFS will end the slow and costly practice of the Civil National Business Centre producing paper files and posting them to courts with the risk of them being mislaid and where they then need to be stored. This will save time and money, is more efficient and will bring practices into the 21st century.”

Chair comment

Chair of the Justice Committee and Labour MP Andy Slaughter MP said:

“It is right the Ministry of Justice has acknowledged the County Court ‘faces substantial challenges, and the performance needs to improve’.

“The Committee’s report laid bare a “dysfunctional” system, that has failed adequately to deliver civil justice across England and Wales and could be best described as the 'Cinderella service' of the justice system.

“It is welcome the MoJ has accepted or partially accepted the Committee’s recommendations in relation to “unacceptable” delays, recruitment and retention issues across frontline staff and the Judiciary, the complex "patchwork" of paper-based and digital systems in the County Court and the “significant disrepair” of the Court estate.

“However, a comprehensive review of the County Court is essential for establishing a sustainable plan to reduce the systemic delays and inefficiencies entrenched across its operations. Without it, it is unclear how fundamental reform will be achieved.

“There needs to be measurable and timely improvement secured across the remit of the Committee’s report following years of underfunding. Citizens and businesses can no longer afford to wait. MPs will be tracking progress in the coming months against the Government’s response.”